

26VECV00775 26VECV00775

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-10

Motion: MOTION TO SET ASIDE DEFAULT JUDGMENT

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Case Number: 26VECV00775 Hearing Date: September 10, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RIZE CREDIT UNION formerly known as

SCE, a federally chartered credit union,

Plaintiff,

vs.

ARMEN G. TSATINIAN AKA ARMEN

TSATINIAN, an individual; the STATE OF

CALIFORNIA acting by and through the

CALIFORNIA DEPARTMENT OF MOTOR

VEHICLES, a government entity; and DOES

1 through 20, inclusive,

Defendants.

CASE NO: 26VECV00775

[TENTATIVE] ORDER RE:

MOTION TO SET ASIDE DEFAULT JUDGMENT

Dept. W

8:30 a.m.

September 10, 2026

[TENTATIVE] ORDER: The Court DENIES Moving Defendant's Motion to Set Aside.

Background

This is a breach of contract case. Plaintiff Rize Credit Union alleges that they entered into a contract with Moving Defendant, Armen Tsatinian, as well as Defendants the State of California, and the California DMV, to finance the purchase of a 2023 Toyota Crown. Plaintiff alleges that, pursuant to the agreement, Defendants agreed to make monthly payments to Plaintiff. Plaintiff further alleges that Defendants defaulted on these payments.

On February 6, 2026, Plaintiff brought suit against Defendants, alleging five causes of action: 1) breach of contract, 2) claim and delivery, 3) conversion, 4) possession of real property, and 5) declaratory relief.

On April 9, 2026, default judgment was entered against Moving Defendant. Now, Moving Defendant moves to set aside this default judgment.

On July 30, 2026, this Court first heard this motion. The Court continued the hearing, and ordered Moving Defendant to file a supplemental briefing establishing evidence of the improper service against them.

Now, the Court once again hears this motion.

Discussion

Initial Analysis

Moving Defendant moves this Court to set aside the April 9, 2026, default judgment. (Mot. to Set Aside, p. 1:22-24.) Moving Defendant asserts that service against him was improper, and thus this default should be set aside under CCP § 473.5. (Id. p. 2:22-26.)

A default judgment can be set aside under CCP § 473.5 if: 1) the motion is timely – meaning it was filed and served within the earlier of two years after entry of a default judgment, or six months after service of the default judgment – and 2) the court determines that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (CCP § 473.5(a),(c).)

i) Timeliness

Here, Moving Defendant's motion is timely. Default was entered on April 9, 2026. Moving Defendant brought this Motion to Set Aside on April 15, 2026, just six days later. Thus, this motion is timely under CCP § 473.5(a).

ii) Lack of Actual Notice

However, Moving Defendant's motion fails to establish that they lacked actual notice of this case. As shown in Plaintiff's Opposition, Moving Defendant was served in this case by substituted service on February 15, 2026.

Under CCP § 415.20(b), "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof: and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left."

Here, Plaintiff hired process server Victor Curiel to serve Moving Defendant with this lawsuit. (Curiel Decl. ¶ 2.) Mr. Curiel attempted service on Moving Defendants home address on February 11th, 14th, and 15th. (Id. ¶¶ 3-5.) On this third attempt, Ara Barbarsian opened the door and identified himself to Mr. Curiel as Moving Defendant's co-tenant. (Id. ¶ 5.) Mr. Curiel left the service documents with Moving Defendant's co-tenant. (Ibid.) Two days later, Mr. Curiel mailed copies of these documents to the same address. (Id. ¶ 6.) Thus, Mr. Curiel appears to have complied with the substituted service requirements under CCP § 415.20(b). This sworn declaration by a process server creates a presumption of proper service that Moving Defendant must rebut. (Rodriguez v. Cho, (2015) 236 CA 4th 742, 750-751.)

Moving Defendant fails to rebut this presumption. Moving Defendant's motion provides no declaration or other admissible evidence suggesting that Mr. Curiel's service on him was improper in any way. (See generally, Mot. to Set Aside.) Moving Defendant merely asserts that he was not served.

While Moving Defendant has failed to meet the burden for their own motion, the Court acknowledges that proper service is crucial for the fair adjudication of cases. Thus, the Court is inclined to continue this motion so that Moving Defendant may have another opportunity to provide evidence supporting their assertions.

Updated Analysis

On July 30, 2026, the Court continued this motion. (Minute Order, 7/30/26.) Moving Defendant was ordered to file a supplemental briefing establishing evidence of the improper service against them by August 17, 2026. (Ibid.)

Since the July hearing, there have been no subsequent filings in this case. Thus, Moving Defendant has failed to meet the burden of proof for this motion.

For these reasons, the Court DENIES Moving Defendant's Motion to Set Aside.

Conclusion

The Court DENIES Moving Defendant's Motion to Set Aside.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 10, 2026

Judge of the Superior Court